

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**[PROPOSED] ORDER GRANTING
LEAVE
TO FILE THIRD AMENDED
COMPLAINT**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

FRANCISCUS DYLAN ROSARIO,
Plaintiff,

v.

CSAA INSURANCE EXCHANGE, and DOES 1 through 50, inclusive,
Defendants.

Case No. CGC-25-631802

Underlying Action: Rosario v. Abdelhalim, Case No. CGC-21-594102

Companion Action: Rosario v. Abdelhalim, et al., Case No. CGC-25-631801

ORDER

The Motion of Plaintiff FRANCISCUS DYLAN ROSARIO for Leave to File Third Amended Complaint having come on regularly for hearing on **May 26, 2026**, at **9:00 a.m.**, in Department **302** of the above-entitled Court, before the **Hon. Joseph M. Quinn**;

Plaintiff appearing in pro per; Defendant appearing through counsel of record;

The Court having considered the moving papers, any opposition, any reply, the arguments of the parties, and the file in this action;

GOOD CAUSE APPEARING THEREFOR,

FINDINGS

The Court makes the following findings in support of this Order:

- (a) **Judicial notice.** The Court takes judicial notice of the documents and statutes identified in Plaintiff's Request for Judicial Notice (Exhibits A through Y), pursuant to Evidence Code §§ 452 and 453.
 - (b) **Codified counts ride on the same factual record.** The proposed Third Amended Complaint adds a codified scienter floor (reckless disregard for the truth under Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974), a codified count for Negligent Misrepresentation under Civil Code § 1710(2) on the no-reasonable-ground tier (Bily v. Arthur Young & Co. (1992) 3 Cal.4th 370, 407–408), and a codified count for Declaratory Relief under Code of Civil Procedure § 1060 (Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904), each on the **same factual record** pleaded in the operative Second Amended Complaint. No new factual matter is introduced.
 - (c) **No new parties or new factual theories.** The proposed Third Amended Complaint names only the existing parties (CSAA Insurance Exchange and DOES 1 through 50). It introduces no new percipient witnesses, no new documents, and no new factual theories of liability beyond those already pleaded in the operative Second Amended Complaint.
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IT IS HEREBY ORDERED

IT IS HEREBY ORDERED that:

1. Plaintiff's Motion for Leave to File Third Amended Complaint is **GRANTED**.
2. The Third Amended Complaint in the form lodged at 802-MOTION-STRIKE-APR-22/TAC-RESPONSE/06-TH is deemed **FILED** as of the date of this Order, and supersedes the operative Second Amended Complaint.
3. Plaintiff shall **SERVE** the Third Amended Complaint on all parties within **ten (10) days** of the date of this Order.
4. Defendant shall have **thirty (30) days** from the date of service of the Third Amended Complaint to respond thereto.
5. Defendant's pending Motion to Strike, Demurrer, and Anti-SLAPP motions directed to the operative Second Amended Complaint are hereby **TAKEN OFF CALENDAR** as moot.

IT IS SO ORDERED.

Dated: _____

Hon. Joseph M. Quinn
Judge of the Superior Court

Submitted by:

Dated: April 28, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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